



*Safe*She

LAW GUIDE

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Introduction

Human rights are seen as essential freedoms to which every person is entitled only by virtue of their humanity. These rights are all interconnected, interdependent, and indivisible, and they are protected by international human rights law, which includes general principles, treaties, and customary law, among other sources. Governments are required under this legal framework to uphold and defend the rights of people or groups.

Ensuring the empowerment and safety of women is a fundamental pillar of social and economic development. Women's rights are intrinsic to human rights, and fostering a secure and enabling environment for women is essential for achieving gender equality and sustainable progress. Recognizing the challenges women face, including gender-based violence, discrimination, and limited access to opportunities, governments and organizations worldwide are implementing policies and initiatives aimed at enhancing women's safety, promoting their rights, and ensuring their full participation in all spheres of life.

Efforts to empower women encompass legal reforms, awareness campaigns, access to education, economic opportunities, and the establishment of mechanisms that protect them from harm. Addressing these issues requires a collaborative approach, involving state institutions, civil society organizations, and international bodies, to create a society where women can live free from fear and exercise their rights without barriers.

In recent years, various programs and frameworks have been introduced to strengthen women's legal protection, support survivors of violence, and promote gender-sensitive policies. Technological advancements, including safety applications and helplines, have further contributed to enhancing women's security. However, despite these efforts, challenges remain, requiring continuous policy improvements, capacity-building, and community engagement to ensure a safe and inclusive society for all women. This document outlines the key measures taken to promote women's empowerment and safety, along with recommendations for further progress.

1. Women's Rights in Pakistan – An Overview

- i. Despite some encouraging actions to improve their situation, Pakistan's efforts to empower women and advance their rights have not yet lived up to expectations and pledges. Pakistan has a Gender Inequality Index score of 0.573, placing it 115th out of 146 nations in the 2011 index, and ranks 99th out of 109 countries in the Gender Empowerment Measure². Despite the government's pledge to achieve 87% women's literacy by 2011 under the Millennium Development Goals (MDGs), reported occurrences of violence against women rose from 7,571 in 2008 to 8,5394 by 2011. Additionally, whereas Pakistan's adult literacy rate is 56%, female literacy is just 40%. The Government of Pakistan has recognized the necessity of addressing patriarchal attitudes and requires additional legislative changes to combat violence against women and safeguard women's rights. However, it is troubling that in its reply to the State under Review, Pakistan largely overlooked the topics of jirgas and the stipulations involving Qisas and Diyat in relation to honour killings, or, at

best, relegated these matters to vague, generalized responses focused on women.

2. Women's Political Participation

- i. The representation of women in the National Parliament and Provincial Legislatures is provided for with 17% of seats allocated for women. Women hold 22.2% of the seats in the National Assembly, 17% in the Senate of Pakistan, and 126 out of 728 seats (17.6%) in the Provincial Assemblies.
- ii. Reserved seats represent a positive and essential advancement. Evidence shows that women occupying reserved seats are among the most active members in both the Provincial and National Assemblies, as well as in the Senate. Of the 71 private member bills presented in 2008-09, 57 were put forth by women on reserved seats, including 8 that focused specifically on women's issues in 2008. Likewise, in 2010-11, most of the bills were initiated by women holding reserved seats. These women confronted societal and cultural norms by proposing legislation against domestic violence, trafficking of women, discriminatory practices, and matters related to women's reproductive rights. Furthermore, women legislators have not limited their efforts to women's issues alone; they have also made amendments concerning a wide array of topics, from citizenship to anti-terrorism.
- iii. Raising the number of reserved seats for women in Parliament and Provincial Assemblies to 33%, along with reinstating the local government system that includes 33% reserved seats for women, will guarantee a greater and more impactful involvement of women in issues related to citizenship.

Recommendations

- Increase women's seats in the Parliament and Provincial Assemblies to 33%.
- Increase the number of directly elected women in political parties. This is recommended in addition to the reservation of seats under the current affirmative measures for women's political participation.

3. Local Government

- i. The Local Government System, which was established through the Local Government Ordinance in 2001, came to an end on 31 December 2009. Although it was initiated by a military ruler to establish a political base, this system ultimately served as a training ground for aspiring grassroots politicians who often lacked financial resources or influence, or both. Under this Local Government System, one-third of the seats were set aside for women, and the conclusion of this system resulted in the loss of women's representation in grassroots decision-making. Despite the flaws in the process of nominating women for the reserved seats, the system enabled many women to transition into provincial politics. Initially elected on non-partisan bases, these women subsequently affiliated with political parties and secured positions in the Provincial Assemblies. In the 2008 General Elections, six local women counsellors were elected to the Provincial Assemblies.
- ii. Pakistan's laws pertaining to women's issues have advanced significantly, and between 2010 and March 2012, numerous laws were passed to uphold and advance women's rights. Forced marriages and other customs that discriminate against women are illegal under these laws. These include marriages between women to resolve civil or criminal

liability, domestic violence, acid crimes, and sexual harassment at work. Additionally, the Women in Distress and Detention Fund Act has been modified to allow the Ministry of Human Rights¹³ to use the fund to give women incarcerated financial and legal support. Additionally, the President approved the bill creating an independent and functional National Commission on the Status of Women (NCSW)¹⁴ on International Women's Day in March 2012. However, the 18th Constitutional Amendment, which was passed in April 2010, stopped Parliament from passing legislation on a number of women's rights-related issues, and several bills fell through the cracks because it placed the topic under provincial law¹⁵. Now, provinces are required to enact laws in areas like domestic abuse.

- iii. The prevailing patriarchal mentality of law enforcement organizations also hinders the application of legal rights. Promotion within the police, court, and local government must require completion of gender sensitization training, which should be included in the foundational training upon induction.
- iv. In Pakistan, the general people has relatively little knowledge of the law. Although the media is crucial in increasing public awareness, it lacks the knowledge and resources necessary to comprehend women's concerns or draw attention to abuses of women's rights.

Recommendations

- a. Ensure the implementation of existing legislation in letter and spirit and develop the requisite rules under these laws where required. Mechanisms for the effective enforcement of all new legislation that has been introduced for the protection of women should be developed with Standard Operational Procedures (SOPs) for the relevant duty bearers.
- b. All line departments and implementing agencies including the police, subordinate judiciary, medico legal units and burn units of hospitals to be given proper orientation on laws related to the protection of women against various forms of violence including forced marriages, sexual harassment and injuries through all forms of burns including acid and other substances.
- c. Laws that are discriminatory towards women to be abolished. These include the provisions of Qisas and Diyat and the law of inheritance.
- d. Legislation to be enacted on issues like domestic violence and a standardized minimum age of marriage for both males and females. The NCSW has drafted proposals regarding legislation for Hindu Family Laws and a review of Christian Family Laws which should be taken up by the concerned legislatures.
- e. Restore the Local Government System with 33% reserved seats for women.

4. Violence Against Women

- i. There has been a rise in violence against women, including rape, murder, acid throwing, and sexual and domestic abuse. Crimes against women have increased by 13% during 2008–17, according to occurrences reported and recorded at various forums (police stations, courts, and complaint cells). Between 2008 and the end of 2010¹⁸, over 2000 women were assassinated in the sake of honor. Since many incidents go unreported, the true numbers could be higher.
- ii. There are few and inadequately funded support systems for victims of violence. Currently, there are just 44 government-run women's shelters out of a total

population of 177.10 million, of which 48–50% are women. 19. Services for victims of assault were supplemented by 23 women's emergency crisis support centers till 2010. The Punjab Government has declined to accept twelve of these functional centers, opting instead to replace them with crisis support desks that merely act as referral mechanisms after the Federal Government's crisis centers for women were devolved to the Provincial Governments under the 18th Amendment to the Constitution.

- iii. Although other provinces have established Women's Crisis Centers, they have not given these centers sufficient and timely funding, which suggests that women's concerns are not given much attention in government finances. In Pakistan, there are currently just three official government burn units in civilian hospitals and three in military hospitals. Although some District hospitals offer burn care, they lack the necessary resources to manage severe cases, particularly those resulting from acid violence. The scarcity of burn units at large public hospitals prevents many victims from receiving care.

Recommendations

- a. Establish new and strengthen existing support structures for victims of violence (Women's Shelters, Crisis Centres and Burn Units for treatment of women victims at district level in all provinces).
- b. The definition of rape to be amended to include sexual intercourse with a woman in custody or in care of state functionaries or in abuse of authority with or without her consent. This should be classified as statutory rape.
- c. Ensure that guidelines developed for Darul amans (Government-run shelters) in the Province of Punjab be fully implemented. Balochistan has formulated similar guidelines and the Provinces of Sindh and Khyber-Pakhtunkhwa should develop similar guidelines and operational procedures for Darul amans along with establishing at least one such shelter in each District.
- d. Address gaps and gender biases in educational/professional textbooks and training curricula for the advancement of a gender- sensitive and rights-based approach towards public service.

5. Minority Women's Rights

- i. During the 2008 Review, Pakistan declared that minorities had equal civil and political rights and were an essential part of Pakistani society. The Pakistani Delegation defended its stance against what it described as "a very incorrect perception of the treatment of minorities" in response to a variety of remarks about religious minorities. Minority barely make up 3% of the population, according to the statement, and many members of the Christian and Hindu minorities occupy significant positions.
- ii. and that the migration of minorities was not caused by discrimination, but by better opportunities elsewhere²³.
- iii. Stereotype-based societal stigma and discrimination against Christians and Hindus are on the rise. Due to their gender and faith, women from these religious minority are doubly vulnerable to violence and prejudice. This is a major issue that leads to a number of societal issues, such as kidnapping, forced conversion, and Muslim

males marrying non-Muslim women from the Christian and Hindu communities. Coercion and violence are frequently present when non-Muslim women convert to Islam²⁴. Despite the Constitution's guarantees of freedom of thought and equal protection under the law, the Human Rights Commission of Pakistan (HRCP) revealed that on average, 25 Hindu women are being forced to convert to Islam each month²⁵. The relatives of women who have been kidnapped and forced to convert are not given assistance by law enforcement. The majority of the time, these conversions are only documented when women are prevented from seeing their relatives. In Sindh, it is seen that local landlords and powerful individuals collude with religious fanatics to maintain women's subjugation. The lack of legislation relevant to their personal laws exacerbates these issues even further.

- iv. When traveling and staying somewhere other than their home, Hindu married couples have a lot of issues. Hindu women also have challenges in receiving health care, are denied the right to property and other rights granted to divorced or widowed women, and are unable to participate in social, economic, and political processes. Hindus have been calling for legislation to record Hindu weddings for a long time. In 2011, a bill to do so was introduced in the National Assembly, but nothing has changed as of yet. On May 26, 2009, a notice was issued allocating a 5% quota for minorities in all Federal Government employment; nevertheless, its implementation is not evident.
- v. When a Hindu woman's request for a marriage certificate was denied by the National Database and Registration Authority (NADRA) in November 2009, citing "no such system or law was in place," the Chief Justice of Pakistan took suo moto action and ordered the government to enact legislation addressing Hindu marriage registration. Three million Hindus in Pakistan are impacted by the difficulties Hindu women encounter in getting Computerized National Identity Cards (CNICs), hence the Supreme Court of Pakistan directed NADRA to remedy these issues. It has been requested that NADRA change its policies regarding the granting of CNICs to Hindu women.
- vi. The recognition of the rights of sexual minorities, albeit with restrictions, is another encouraging development. In its 2009 ruling, the Supreme Court acknowledged transgender persons' fundamental human rights. In November 2011, the Supreme Court ordered the Election Commission of Pakistan to register the transgender community as voters, and NADRA was instructed to provide CNICs to them. Additionally, the Supreme Court has mandated that all district administrations nationwide assist transgender individuals in obtaining property that is rightfully theirs as part of their inheritance.

Recommendations

- f. All types of legal discrimination against non-Muslims with respect to their status as equal citizens to be removed. This includes discrimination against their political participation and discrimination as regards their evidence under certain laws e.g. Hudood Ordinances, 1979.
- g. The existing personal status laws of religious minorities to be reviewed and amended. Required legislation to be enacted specifically for those minorities (Hindus and Sikhs) that are primarily governed under their custom rather than

any statutory provisions.

- h. Legislative and administrative efforts to be made to end forced conversions to Islam of vulnerable women belonging to religious minorities. The victims of this practice should be provided with effective redress and protection.
- i. The representation of women belonging to religious minorities against reserved seats to be ensured.
- j. The issuance of CNICs for Hindu women to be ensured.
- k. The Government to ensure implementation of the Supreme Court's orders regarding the issuance of CNICs for the transgender community along with securing their share in inheritance.

6. 'Islamization' of Criminal Laws: The Qisas and Diyat Provisions and their impact on cases of 'Honour' Killing

- i. The Czech Republic recommended in the 2008 Review that the use of the Qisas and Diyat law's provisions in "honour" killing cases be prohibited under all circumstances. It is significant to note that Pakistan did not accept this advice because it did not believe it to be a widely recognized human right or to be consistent with its own laws, promises, and obligations.
- ii. "Honor" The term "killing" refers to the act of murdering women (and men) in the name of regaining the honor of the family. These killings are also carried out in relation to property disputes and women's inheritance rights.
- iii. The HRCP Report for 2011 states that "93 juveniles were among the 943 women who were assassinated in the sake of honor." 595 instances cited illegal interactions as the explanation, while 219 cases cited being forced to marry the person of their choice. The majority of the killers were brothers and spouses; in 180 of the instances, the murderer was the victim's brother, and in 226 of the cases, the murderer was the victim's husband. Married women made up the bulk of instances (557).
- iv. Currently, as per the law, murder is primarily a crime against the person rather than a crime against the State and is governed by the provisions of Qisas and Diyat introduced in the criminal law in the year 1990 as part of the effort to 'Islamize' laws in Pakistan. These changes redefined the offences of murder and manslaughter along with their punishments in 'Islamic' terms and the provision for retribution or blood money was made available. The introduction of the Qisas and Diyat provisions have provided a statutory right to the heirs of the deceased to pardon the killer/s, ask for compensation or demand retribution. These provisions have also exempted some relations from any mandatory imprisonment sentences. A parent can kill a child or a grandchild and the only sentence under the law is blood money, though the Court has the discretion to sentence the accused to imprisonment for twenty-five years depending upon the facts and circumstances of the case. There is no minimum sentence mentioned in the law. In practice, however, it is rare for a parent to be sentenced with imprisonment for killing their own child. There is a similar provision for a spouse killing the other spouse provided there is a living child at the time of the killing. These provisions prove handy in cases of 'honour' killings as the majority of such murders of women in Pakistan are committed by family members who either benefit from

these provisions or are 'forgiven' by the heirs of the deceased.

- v. The Pakistani government has taken some steps to stop gender discriminating laws and "honour" killings, but the fundamental legal issues surrounding these killings have not been resolved. Since the main legal flaws were left unplugged, the January 2005²⁸ modifications to the penal code were ineffective. The perpetrators of "honour killings" won't fear reprisals until the clauses of Qisas and Diyat are repealed, and Pakistan won't be able to fulfill its international duty to prevent discrimination against women.

Recommendations

- a. The provisions allowing for a compromise or a pardoning of the killer by the heirs of the deceased should be removed immediately for prevention of 'honour' killings.
- b. The availability of legal 'concessions' to some family members (discussed above) should be repealed immediately and effective sentences should be introduced irrespective of the relationship between the perpetrator and the deceased.

7. Inheritance

- i. Luxembourg suggested eradicating gender disparity during the 2008 Review, especially in relation to property.
- ii. Men and women obtain unequal shares as a result of Pakistan's statutory framework governing the law of inheritance for Muslims.³⁰ Furthermore, the majority of women believe that they are being coerced out of the legally mandated share or that they are being pressured by society to give it up in favor of the male family members. According to Pakistan's Constitution, women have the legal right to hold property, and courts have often supported this right in situations involving the rejection or usurpation of women's inheritance, even when the women had formally handed their portion to their brothers.
- iii. But in fact, women's inheritance rights are often circumvented due to societal and familial constraints, and customs govern what they can acquire. Even though the law stipulates a rapid division of the deceased's assets and the widow's right to her share³¹, it is common in all four provinces of Pakistan for women to not inherit property and for widows to forfeit their inheritance rights if they remarry outside of the deceased husband's family.
- iv. Another tradition is haq bakhshwana, or literally "giving up rights," in which females are either married to the Quran or never married in order to keep property from leaving the family. Since the quantity of land and property is linked to status and power, cousin weddings and watta satta (swap marriages in which one set of brothers and sisters marry another) are also intended to avoid property division. Recent changes to the penal code pertaining to the prohibition of anti-women's acts have made it illegal to deny women their inheritance rights, even though the laws governing a woman's portion of the property have not altered. Depriving a woman of her inheritance via dishonest or unlawful means is punished by five to ten years in jail, a fine of one million rupees, or both, according to the applicable penal provisions. Marrying women according to the Quran in order to deny them their inheritance rights is punishable by three to

seven years in prison. This clause also covers a woman's promise to remain single or not to seek inheritance. It remains to be seen if this law will be applied effectively.

Recommendations

- i. Amend inheritance laws to equalize inheritance for sons and daughters and change the procedures of succession to facilitate succession and control over inheritance.

8. Alternate Dispute Resolution Mechanisms

- i. The Czech Republic's suggestion that Pakistan "guarantee punishment for perpetrators of violence against women, properly investigate and punish participants and leaders of unlawful jirgas for their appeals to violence against women"³³ was adopted by Pakistan in its 2008 Review.
- ii. Pakistan's local jirga system violates women's rights by maintaining their lack of representation and leaving them open to sexual, social, and physical abuse, particularly in tribal regions.
- iii. The Sindh High Court ruled in April 2004 that it was unlawful for jirgas to deliver decisions to individuals. The court ordered the police and district administration to take action against these jirgas, but in reality, the High Court's ruling is consistently disregarded. Incidents of the jirga's decisions being implemented are still being reported³⁴. Currently, constitutional petitions against the convening of panchayats and jirgas are being heard by the Supreme Court. The Inspector General of Police (IGP) and Chief Secretaries of every province, as well as Islamabad, were asked by the Supreme Court of Pakistan in March 2012 to produce a report on the unlawful convening of jirgas and panchayats. The Court also ordered the officials concerned to take action against those people who hold *jirgas* in their jurisdiction.
- iv. Higher courts have already intervened in some situations to address certain events. In order to resolve a conflict between the two families, the Peshawar High Court in December 2010 ordered action against jirga members who had decided to give two adolescent girls to a rival family³⁵. The Bench ruled that such cruel and inhumane customs were not permitted by Islam or Pakistani law, and it directed that a First Information Report be filed against the Jirga members. Three members of the jirga that had forced the marriage of the two girls into a rival family against their will were taken into custody by the police on orders from the Peshawar High Court, but a prayer leader and another accused were able to get away. The results of the cases filed against the detained Jirga members are still pending.

Recommendations

- m. The Government should take effective measures against all informal dispute resolution mechanisms that perpetrate and perpetuate violence against women.

9. Early Age Marriage

- i. Despite the 2008 Review (Switzerland)³⁶'s recommendation to discourage early weddings, young age marriage still poses a barrier to Pakistani women's empowerment. By the age of 18, 40% of females are married, and by 1537, 13% are married. Child marriage is the leading cause of childbirth deaths in Pakistan,

where one woman dies every 20 minutes. Notwithstanding the substantial evidence of the detrimental effects of young marriage on children's physical, emotional, and mental health, the Child Marriage Restriction Act sets a minimum marriage age of 16 for females and 18 for boys. To make 18 the legal marriage age and to make underage marriage illegal with severe penalties, legislative changes are required. Inconsistency in the law on minimum age of marriage also needs to be removed.

Recommendations

1. Standardization of age of marriage at 18 years for females and males.
2. Ensure universal access to reproductive health services including comprehensive emergency obstetric care and post abortion care to women backed by necessary information on contraceptives, birth spacing and abortion as applicable under the law.
3. Ensure universal primary education as mandated in the Constitution of Pakistan (Article 25 A) and incentivize secondary education for girls.

10. Constitutional Provisions

The Constitution of Pakistan safeguards the rights of women through the following articles:

Article 4: Right to be treated under the law

- Guarantees that every individual, including women, shall be dealt with in accordance with the law.

Article 9: Protection of life and liberty.

- Protects the right to life and liberty, ensuring women's safety and freedom from violence.

Article 14: Right to dignity and privacy.

- Declares the dignity of individuals inviolable, providing protection against violence and harassment.

Article 25: Equality before the law and prohibition of gender discrimination.

- Ensures equality before the law and prohibits discrimination based on sex.

Article 25(3): Special provisions for women and children.

- Permits special provisions for the protection of women and children.

Article 35: Protection of the marriage and family

- Ensures the protection of marriage, family, mother, and child as a fundamental duty of the state.

Article 37(d): Ensures inexpensive and expeditious justice.

- Mandates inexpensive and expeditious justice for all citizens.

Article 38(e): Secures economic rights and social welfare for women.

- Prohibits exploitation and ensures the socio-economic well-being of women.

11. Amendments and Special Laws for Women's Protection

The Protection Against Harassment of Women at Workplace Act, 2010:

- Prevents harassment at the workplace and establishes complaint resolution mechanisms.

The Acid Control and Acid Crime Prevention Act, 2011:

- Criminalizes acid attacks and regulates the sale of acids, imposing strict penalties, including life imprisonment.

Protection of Women (Criminal Laws Amendment) Act, 2006:

- Criminalizes rape with punishments, including death or imprisonment for at least ten years.
- Ensures the effective trial of rape cases.

Criminal Law (Amendment) Act 2016:

- Introduced stricter penalties for crimes such as honor killings and acid attacks.

12. Sections of Pakistan Penal Code (PPC) Relevant to Women's Protection

Section 354: Assault to outrage modesty (up to 2 years imprisonment).

- Penalizes assault or use of criminal force with the intent to outrage a woman's modesty with imprisonment of up to two years, a fine, or both.

Section 354A: Assault to strip a woman publicly (death or life imprisonment).

- Punishes assault with criminal force to strip a woman of her clothes and expose her to public view, with death or life imprisonment, along with a fine.

Section 365B: Kidnapping or abducting a woman to compel marriage (life imprisonment).

- Criminalizes the kidnapping or abduction of women to compel them into marriage or illicit intercourse, with a punishment of life imprisonment and a fine.

Section 366A: Procuring a minor girl for illicit intercourse (up to 10 years imprisonment).

- Criminalizes forcing a girl under 18 into sexual intercourse, with imprisonment of up to ten years and a fine.

Section 375 (Rape Definition) and Section 376 (Rape Punishment):

- Defines rape and prescribes punishments ranging from ten years of imprisonment to death.

Section 376A: Punishment for gang rape (death or life imprisonment).

- Introduced for gang rape cases, providing stricter penalties, including the death penalty or life imprisonment.

Section 376B: Penalizes sexual assault

- Penalizes sexual assault without penetration (distinct from rape), providing protection against broader forms of sexual violence.

Section 377A: Sexual exploitation of women in custodial settings

- Specifically criminalizes sexual exploitation of vulnerable individuals, including women in custodial settings or by those in positions of authority.

Section 402B: Stringent punishments for habitual offenders

- Adds stringent punishments for habitual offenders of crimes against women.

Section 402C: Publicizes habitual offenders of crimes against women.

- Allows for publicizing details of convicted sex offenders to deter repeat crimes against women.

Section 498: Criminalizes forced marriages and marriage to the Quran.

- Criminalizes the practice of enticing or abducting a married woman with the intent of marrying her or subjecting her to illicit intercourse.

Section 509: Words, gestures, or acts intending to insult modesty (up to 3 years imprisonment).

Penalizes:

- Words, gestures, or acts intending to insult a woman's modesty with imprisonment of up to one year, a fine, or both.
- Demands for sexual favors or verbal/non-verbal communication causing annoyance, with imprisonment of up to three years or a fine, or both.

Section 509B: Crime of stalking women

- Addresses the crime of stalking women, ensuring stricter penalties.

13. Cybersecurity and Online Harassment Laws

Prevention of Electronic Crimes Act (PECA) 2016:

Section 18: Identity theft and misuse of personal data

- Criminalizes offenses involving identity theft and misuse of personal data, especially targeting female victims.

Section 19: Offenses against the modesty of a woman

- Criminalizes offenses against the modesty of a woman through digital means, including the publication of inappropriate images or videos.

Section 20: Online defamation

- Criminalizes online defamation.

Section 21: Digital sexual harassment.

- Addresses digital sexual harassment.

Section 22: Display of sexually explicit images or videos without consent.

- Criminalizes the creation, transmission, and display of sexually explicit images or videos without consent.

Section 23: Production and distribution of sexually explicit material

- Penalizes the production and distribution of sexually explicit material involving minors, offering added protection against exploitation.

Section 24: Cyberstalking

- Penalizes cyberstalking, including sending obscene or threatening messages.

National Response Centre for Cyber Crime (NR3C):

- Operated by FIA, offering support to victims of cyber harassment.

14. Reporting Mechanisms and Helplines

Immediate help and legal assistance:

To provide immediate help and legal assistance, the app can integrate these helplines:

Police Emergency Number:

- 15

Women Helpline (Ministry of Human Rights):

- 1099

FIA Cyber Crime Wing:

- 9911

Punjab Women Protection Authority Helpline:

- 1043

Implementation Suggestions for the Apps

Legal Aid Section:

- Include simplified legal guides for women to understand their rights under various sections and articles.

Incident Reporting Feature:

- Integrate direct reporting to law enforcement agencies and helplines.

Awareness and Training:

- Provide modules to educate users about laws, self-defense, and safety precautions.

Digital Evidence Collection:

- Enable secure documentation of evidence, such as audio, video, and written records, for legal proceedings.

15. References

1. Constitution of Pakistan, 1973, Articles 4, 9, 14, 25,35, 37(d), and 38(e).
2. The Protection Against Harassment of Women at Workplace Act, 2010, Section 2(n).
3. The Acid Control and Acid Crime Prevention Act, 2011, Section 3.
4. Protection of Women (Criminal Laws Amendment) Act, 2006, Section 2.
5. Criminal Law (Amendment) Act, 2016, Section 6.
6. Pakistan Penal Code (PPC), Sections 354, 354A,365B, 366A, 375, 376,377A,402B,402C,498,509 and 509B.
7. Prevention of Electronic Crimes Act (PECA), 2016, Sections 18,19,20,21,22,23 and 24.
8. Federal Investigation Agency (FIA) NR3C Website.
9. Government of Pakistan Police Helpline.
10. Ministry of Human Rights, Pakistan - Women Helpline.

11. Federal Investigation Agency (FIA) Cyber Crime Wing.
12. Punjab Women Protection Authority Helpline.
13. <http://www.ohchr.org/EN/Issues/Pages/WhatareHumanRights.aspx>
14. Aurat Foundation shared its fourth Annual Report on violence against women in Pakistan at a press conference in Islamabad on 16 August 2011. Press briefing available @ <http://www.af.org.pk/PDF/VAW%20Reports%20AND%20PR/PR/Press%20Release%202011%20%20English.pdf>
15. Amina Samiuddin, *Reserved seats: a cognitive space for women?* Paper presented at a seminar 'Empowerment Processes: Choices, Obstacles and Outcomes' organized by Shirkat Gah in June 2010, and at the international conference on 'Global Transformations and Local Mobility: Rebuilding Pakistan after Crises' organized by Shirkat Gah and Lahore University of Management Sciences in March 2011.
16. The Prevention of Anti-Women Practices (Criminal Law Amendment) Act, 2011.
17. Domestic Violence (Prevention and Protection) Act, 2012. It should be noted however, that this Act is applicable within Islamabad only. In March 2013, the Sindh Assembly passed legislation pertaining to domestic violence.
18. Criminal Law (Second) Amendment Act, 2011. Through this amendment, provisions have been added in the Penal Code that carry heavy punishments for the crime of inflicting injuries through acid or such other dangerous substances.
19. http://epaper.dawn.com/~epaper/DetailImage.php?StoryImage=15_01_2012_004_005
20. Human Rights Commission of Pakistan, State of Human Rights in 2008; *State of Human Rights in 2009*; and *State of Human Rights in 2010* (Pakistan).
21. Government of Pakistan, *Pakistan Economic Survey 2010-11* (Islamabad, 2011).